
MANGROVE FORESTS: SUSPEND THE ISSUANCE OF TENURIAL INSTRUMENTS

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Introduction

Mangrove or “Bakawan” is a tree that breeds in sea and river waters. It thrives along the complex conditions of tropical and subtropical coastlines. They link crucial support to marine and terrestrial ecosystems. From their leaves to their branches, trunks, and roots, Mangroves support the multiple intricacies of human needs.¹ To wit, they act as carbon sinks, biodiversity hotspots, improve and maintain local water quality, double as coastal protection, and are essential to the livelihood resources of the people.²

In the Philippines, mangrove trees can be seen anywhere along the coastlines and river waters of the archipelago, generously multiplying. It has served significant protection from the typhoons. However, the International Union for Conservation of Nature (IUCN) reported that due to climate change, half of the world’s mangrove ecosystems are at risk. While the Philippines experienced a significant mangrove decline, losing 10.5 percent of its mangrove forests between 1990 and 2010, because of the rapid expansion of aquaculture ponds for fish farming.³

Unfolding the economic and scientific importance of Mangrove Trees marks the milestone of the preservation and breeding of Mangrove forests and timberlands. This, however, did not warrant protection from commercial and industrial human exploitation. Its existence radiated so much potential financial gain and profit that it invited several business perpetrators, aqua farmers, and private investors, taking advantage of the gaps of the law to exploit mangrove timberlands in the guise of eco-tourism development purposes.

¹ The Philippines Today, What is a Bakawan? (July 4, 2019), <https://thephilippinestoday.com/what-is-a-bakawan/>

² Dhaliwal, Bani The Canopy Project, The Importance of Mangrove Forests (February 14, 2023), <https://www.earthday.org/the-importance-of-mangroveforests/#:~:text=Mangroves%20improve%20and%20maintain%20local,ad%20the%20species%20within%20them>

³ Lu, Brian James J. Fresh Viewpoints: A New Perspective, The Importance of Philippine Mangroves (May 31, 2024), <https://www.pna.gov.ph/opinion/pieces/888-the-importance-of-philippine-mangroves>

The Law Provides

DENR Administrative Order No. 15-90 (AO No. 15-90),⁴ or otherwise known as the Regulations Governing the Utilization, Development and Management of Mangrove Resources; established the policy to conserve, protect, rehabilitate and develop the remaining mangrove resources; regulate the utilization and development of the mangrove resources; stop the wanton exploitation of the mangrove resources; and enhance the replenishment of the denuded areas through natural or artificial means. In addition to the policy, paragraph (l), Sec. 2, of DENR AO No. 15-90, defined that “Mangrove Swamp Forest Reserves are mangrove areas of the public domain which are declared as such under Presidential Proclamation 2152 and are determined to be needed for conservation and protection purposes.”⁵

On the other hand, the Republic Act No. 11038 (R.A. No. 11038),⁶ or otherwise known as the Expanded National Integrated Protected Areas System Act of 2018, established a comprehensive system of protected areas in the country to protect and conserve the environment, biodiversity, and threatened species. Furthermore, in paragraphs (n) and (o), Sec. 18 of RA No. 11038, provides that, “Except as may be allowed by the nature of their categories and pursuant to rules and regulations governing the same, the following acts are PROHIBITED within Protected Areas:

(n) Occupying or dwelling in any public land within the protected area without clearance from the Protected Management Area (PAMB);

(o) Constructing, erecting, or maintaining any kind of structure, fence or enclosure, conducting any business enterprise within the protected area without prior clearance from the PAMB and permit from the DENR, or conducting these activities in a manner that is inconsistent with the management plan duly approved by the PAMB;⁷

The existing policies extend its protection to not just with the mangrove reserves, forests, and timberlands, but to all extent of the wildlife, terrestrial, and marine ecosystem and resources. With the armor of the law, these environmental reserves are warranted against human exploitations. However, such policies are limited when it prescribes otherwise, providing for special exceptions. And in most cases, the exceptions to the rules open the floodgates to abuse.

⁴ DENR Administrative Order No. 15-90 (AO No. 15-90), <http://lis.dar.gov.ph/documents/9231#:~:text=To%20sustain%20optimum%20productivity%2C%20it,development%20of%20the%20mangrove%20resources%3B>

⁵ Regulations Governing the Utilization, Development and Management of Mangrove Resources, DENR Administrative Order No. 15-90 (February 1, 1990), <http://lis.dar.gov.ph/documents/9231>

⁶ Expanded National Integrated Protected Areas System Act of 2018, Republic Act No. 11038 (June 22, 2018), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/84999>

⁷ Republic Act No. 11038 (June 22, 2018) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/84999>

Detriments of Issuance of Tenurial Instruments

Tenurial instruments are leases, permits, agreements, joint venture or production sharing agreements, and licenses that are granted by the Department of Environment and Natural resources (DENR) for various reasons: conservation, exploration, development, and utilization of natural resources.⁸

The gradual decline of mangrove forest areas is rooted in the exploitation of permits or tenurial instruments. It is clear that the law is keen on protecting and conserving mangrove resources and reserves, however, due to the exceptions provided by the existing laws, such preservation policies are violated. Take for instance the report from Palawan News notifying the public to take safeguards and perform due diligence when entering into tenurial instruments or license agreements, especially those involving forest and other government lands. This implies that although possessing or occupying forest reserves are prohibited, the same is not absolute when such permits or licenses are granted and approved.⁹

Another alarming report coming from the DENR, announcing the eviction notice of the illegal occupants in Palawan protected areas for violating the provisions of R.A. No. 11038 or the Expanded National Integrated Protected Areas System or E-NIPAS Act of 2018. The law prohibits occupation or dwelling in any public land within a protected area without clearance from the Protected Management Area (PAMB). Furthermore, DENR-MIMAROPA Regional Executive Director Henry Adornado said “The PAMB has neither accepted from the respondents any application for tenurial instrument nor approved any construction of structures in the said area.”¹⁰ Hence, if it weren't for the permits unapproved, the illegal occupants in

⁸ Gozum, Iya DENR to Stop Issuing Permits, Agreements for Use of Protected Areas (October 18, 2023), [https://www.rappler.com/philippines/denr-stop-issuing-permits-instruments-protected-areas/#:~:text=DENR%20to%20stop%20issuing%20permits%2C%20agreements%20for%20use%20of%20protected%20areas,-Oct%2018%2C%202023&text=MANILA%2C%20Philippines%20%E2%80%93%20The%20Department%20of,said.%20on%20Wednesday%2C%20October%](https://www.rappler.com/philippines/denr-stop-issuing-permits-instruments-protected-areas/#:~:text=DENR%20to%20stop%20issuing%20permits%2C%20agreements%20for%20use%20of%20protected%20areas,-Oct%2018%2C%202023&text=MANILA%2C%20Philippines%20%E2%80%93%20The%20Department%20of,said.%20on%20Wednesday%2C%20October%20)

⁹ Palawan News, DENR Warns Public Against Fraudulent Land Transactions in MIMAROPA (May 20, 2022), <https://palawan-news.com/denr-warns-public-against-fraudulent-land-transactions-in-mimaropa/#:~:text=DENR%20warns%20public%20against%20fraudulent%20land%20transactions%20in%20MIMAROPA,-By&text=The%20environment%20department%20in%20MIMAROPA,forest%20and%20other%20government%20lands>

¹⁰ DENR, DENR: Eviction Notice v. Illegal Occupants in Palawan Protected Area Issued ‘as early as March’ (June 17, 2020), <https://denr.gov.ph/news-events/denr-eviction-notice-vs-illegal-occupants-in-palawan-protected-area-issued-as-early-as-march/#:~:text=As%20early%20as%20March%20this,in%20Taytay%20town%2C%20Palawan%20province>

the “*protected areas*” of Mangrove forests and timberlands could have gotten away with the law.

To give credence to those issues, I had a personal interview with one of the retired employees of the City Agriculture Office of Palawan, named Delia B. Martinez. She attested that the pressing issues are indeed happening in Palawan. She said that our environmental salvage zones are all occupied and titled lots, even the timberland “mangrove areas.” She further said that these areas are, in fact, cannot be sold nor can be possessed by any private investors without certification from the DENR. She explained that these buyers apply for Forest Landuse Agreement for Tourism Purposes (FLAGT) or Foreshore Lease Agreement to acquire the said protected areas, and the moment DENR approves such agreement, the buyers can then covertly generate the lot title for the said subject property and gradually destroy the Mangrove Trees. And when there are no more Mangrove trees, the buyers can now then apply for a tenurial instrument, and pay for the taxes of said property so that they can acquire tax declaration for the processing of land titling. And she concluded her statement that only those well-off individuals who have actually unlawfully acquired those protected properties.

Conclusion

“Good people do not need laws to tell them to act responsibly, while bad people will find a way around the laws.” –Plato

It is a well settled rule that for every general rule there will always be an exception. In light of this, DENR AO No. 15-90 and R.A. No. 11038 established the rules for the protection and preservation of Mangrove Forests and Timberlands. However, violators are able to go around the law by taking advantage of the exception provided therefor. Hence, the occupying or dwelling of mangrove forests, timberlands, or even protected zones are prohibited until clearance, permit, or tenurial instruments are granted by the proper authorities. The guarantee of the protection of Mangrove Forests and Timberlands are open to the abuse of the perpetrators and may cause its further destruction. And we can do nothing about it except through lobbying such issues to the attention of the legislators. As Martinez said, “The law is made firm and polished, however, the law always has a loophole that is money talks.”

It is alarming that tenurial instruments are granted even to the protected areas of marine, timberland, and coastal forests. Because, although the process therefor is extensive and closely evaluated by the proper authorities, perpetrators are still able to go around the law by means of promised considerations, which could potentially influence the judgment of the assigned authorities. Therefore, we appeal to suspend the issuance of tenurial instruments, not just on mangrove protected areas, but likewise to all extent where Mangrove Trees and Timberlands are already existing and thriving.

Bibliography

Statutes

Expanded National Integrated Protected Areas System Act of 2018, Republic Act No. 11038 (June 22, 2018), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/84999>

Regulations Governing the Utilization, Development and Management of Mangrove Resources, DENR Administrative Order No. 15-90 (February 1, 1990), <http://lis.dar.gov.ph/documents/9231>

Online Sources

DENR Administrative Order No. 15-90 (AO No. 15-90), <http://lis.dar.gov.ph/documents/9231#:~:text=To%20sustain%20optimum%20productivity%2C%20it,development%20of%20the%20mangrove%20resources%3B>

DENR, DENR: Eviction Notice v. Illegal Occupants in Palawan Protected Area Issued 'as early as March' (June 17, 2020), <https://denr.gov.ph/news-events/denr-eviction-notice-vs-illegal-occupants-in-palawan-protected-area-issued-as-early-as-march/#:~:text=As%20early%20as%20March%20this,in%20Taytay%20to wn%2C%20Palawan%20province.>

Dhaliwal, Bani The Canopy Project, The Importance of Mangrove Forests (February 14, 2023), <https://www.earthday.org/the-importance-of-mangrove-forests/#:~:text=Mangroves%20improve%20and%20maintain%20local,an d%20the%20species%20within%20them>

Gozum, Iya DENR to Stop Issuing Permits, Agreements for Use of Protected Areas (October 18, 2023), <https://www.rappler.com/philippines/denr-stop-issuing-permits-instruments-protected-areas/#:~:text=DENR%20to%20stop%20issuing%20permits%2C%20agreements%20for%20use%20of%20protected%20areas,-Oct%2018%2C%202023&text=MANILA%2C%20Philippines%20%E2%80%93%20The%20Department%20of,said%20on%20Wednesday%2C%20October%2018>

Lu, Brian James J. Fresh Viewpoints: A New Perspective, The Importance of Philippine Mangroves (May 31, 2024), <https://www.pna.gov.ph/opinion/pieces/888-the-importance-of-philippine-mangroves>

Palawan News, DENR Warns Public Against Fraudulent Land Transactions in MIMAROPA (May 20, 2022), <https://palawan-news.com/denr-warns-public-against-fraudulent-land-transactions-in-mimaropa/#:~:text=DENR%20warns%20public%20against%20fraudulent%20land%20transactions%20in%20MIMAROPA,By&text=The%20environment%20department%20in%20MIMAROPA,forest%20and%20other%20government%20lands>

The Philippines Today, What is a Bakawan? (July 4, 2019), <https://thephilippinestoday.com/what-is-a-bakawan/>